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Judgment Sheet

IN THE LAHORE HIGH COURT

MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Criminal Appeal No. 328-J of 2023
(Sultan alias Panun v. The State, etc.)

Criminal Appeal No. 329-J of 2023
(Fida Hussain v. The State, etc.)

Criminal Appeal No. 331-J of 2023
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Criminal Revision No. 84 of 2023
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JUDGMENT

Date of hearing:	06.03.2025
Appellants by:	Rana Muhammad Nadeem Kanju, Advocate.
State by:	Mr. Hassan Mehmood Tareen, Deputy Prosecutor General.
Complainant by:	Mr. James Joseph, Advocate.

MUHAMMAD JAWAD ZAFAR, J: The appellants¹ have assailed the vires of judgment dated 26.01.2023 (“**impugned judgment**”) passed by learned Additional Sessions Judge, Taunsa Sharif (“**Trial Court**”) through their respective appeals,² whereby the appellants were tried and convicted in Crime Report bearing FIR No. 133/2019 dated 04.05.2019, for offences under Section 302, 364, 449 and 34 of the Pakistan Penal Code 1860 (“**PPC**”), registered with Police Station Saddar Taunsa Sharif, district Dera Ghazi Khan (“**Crime Report**” or “**FIR**”). All the appellants were awarded the same sentence after their conviction *vide* judgment dated 26.01.2023, as under:

- *Under Section 302(b) and 34, PPC, sentenced to imprisonment for life as ta’zir for committing the qatl-e-amd of deceased Saddam Mehdi with direction to pay Rs.4,00,000/- as compensation to legal heirs of the deceased in terms of*

¹ Niaz Hussain, Fida Hussain, and Sultan *alias* Panun.

² Appellant Niaz Hussain filed criminal appeal bearing No. 331 of 2023; appellant Fida Hussain filed criminal appeal bearing No. 329 of 2023; and, appellant Sultan *alias* Panun has filed criminal appeal bearing No. 328 of 2023.

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Section 544-A, Cr.P.C. to be recovered from the arrears of land revenue and in case of default in payment thereof, to further undergo S.I. for six months.

- Under Section 302(b) and 34, PPC, sentenced to imprisonment for life as ta'zir for committing the qatl-e-amd of deceased Haleema Bibi with direction to pay Rs.4,00,000/- as compensation to legal heirs of the deceased in terms of Section 544-A, Cr.P.C. to be recovered from the arrears of land revenue and in case of default in payment thereof, to further undergo S.I. for six months.
- Under Section 364 and 34, PPC, sentenced to imprisonment for life as ta'zir for kidnapping and committing the qatl-e-amd of deceased Sadam Mehdi with direction to pay Rs.1,00,000/- as compensation to legal heirs of the deceased in terms of Section 544-A, Cr.P.C. to be recovered from the arrears of land revenue and in case of default in payment thereof, to further undergo S.I. for six months.
- Under Section 449, PPC, sentenced to imprisonment for life as ta'zir for trespassing into the house of Ghulam Muhammad and committing qatl-e-amd of deceased Mst. Haleema Bibi with direction to pay Rs.1,00,000/- as compensation to legal heirs of the deceased in terms of Section 544-A, Cr.P.C. to be recovered from the arrears of land revenue and in case of default in payment thereof, to further undergo S.I. for six months.
- Benefit of Section 382-B Cr.P.C was extended and all sentences to run concurrently.

2. The complainant Inaam Mehdi (PW-5) has filed a criminal revision petition bearing No. 84 of 2023 under Section 435 read with Section 439 of the Code of Criminal Procedure 1898 (“Code” or “Cr.P.C”) for enhancement of sentence of the appellants. All the criminal jail appeals and criminal revision for enhancement, due to arising out of the same impugned judgment, are being decided through this single judgment.

3. The synoptically facts and circumstances, as delineated by complainant Inaam Mehdi (PW-5) in his statement before the learned Trial Court, are hereby reproduced for narration of facts, *infra*:

‘Stated that I am resident of Basti Sanjadar Saidan. I am cultivator by profession. My younger brother Syed Sadam Mehdi aged about 21/22 years was student of BSc. On 03.05.2019, at about 8.00 p.m. my younger brother Sadam Mehdi went to meet his friend Muhammad Iqbal son of Muhammad Ramzan alias Bilal r/o Basti Bechhra but he did not come back till 12.45 (night). I became worried and went to Syed Abdul Rauf Shah and Syed Mehtab Shah. I along with said persons went on car for the search of Syed Sadam Mehdi to Basti Bechhra. At about 1.30 a.m. we reached Basti Bechhra near the shop of Muhammad Iqbal son of Muhammad Ramzan. We saw Niaz Hussain armed with hatchet, Fida Hussain armed with hatchet, Sultan alias Punu armed with hatchet,

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Mehboob armed with hatchet, were catching hold of my brother Sadam Mehdi and taking him towards the house of Ghulam Muhammad son of Ghulam Rasool. We saw them in the light of torch. We also knew them previously. My brother Sadam Mehdi was crying for help. We stopped the car and went towards them. When we reached at some distance, Fida Hussain accused threatened us not to come forward otherwise, they would kill us. In the meanwhile, Niaz Hussain accused made hatchet blow on the head of Sadam Mehdi. Sultan accused caused hatchet blow on the left side of head of Sadam Mehdi. Accused Niaz also gave second hatchet blow which hit on back side of head of Sadam Mehdi near hair line. Fida Hussain accused gave hatchet blow which hit on the front of head of Sadam Mehdi. Niaz Hussain accused gave two hatchet blows which hit at head above the right eye of Sadam Mehdi. Accused Mehboob caused hatchet blow which hit on ankle of right leg of Sadam Mehdi. He also caused second blow of hatchet which hit on left knee of Sadam Mehdi. Accused Fida Hussain caused hatchet blow which hit on the back of right hand of Sadam Mehdi. Sadam Mehdi due to the said injuries fell on the ground. Accused Mehboob and Sultan restrained us to come nearby them. Niaz Hussain and Fida Hussain entered into house of Ghulam Muhammad s/o Rasool by climbing over the Southern wall of Ghulam Muhammad's house and they took out a girl aged about 18 years from that house and afterwards we knew her name as Haleema Bibi. Haleem Bibi was crying for help. Her mother namely Naseem Bibi and her sister Abida Bibi were also trying to rescue her from the clutches of the accused persons. Meanwhile, Niaz Hussain accused caused hatchet blow on the right side of head of Haleema Bibi. Niaz Hussain caused second blow of hatchet which hit on left side of head of Haleema Bibi. Fida Hussain accused gave a hatchet blow which hit above the right ear of head of Haleema Bibi. Sultan accused caused 3 to 4 hatchet blows at the head of Haleema Bibi. Then accused Mehboob caused hatchet blow on right arm of Haleema Bibi. Haleem Bibi fell on the ground due to the said injuries. All the accused persons fled away from the spot along with their respective weapons. Both the injured succumbed to the injuries'.

4. The investigation of the case was initially entrusted to Danish Ali SI (PW-9), and thereafter, upon the transfer of Danish Ali SI (PW-9), to Maraqib Hussain (PW-10). Investigating officer Danish Ali SI (PW-9), while on patrolling duty, upon receipt of information on 04.05.2019, proceeded to Bechhra, recorded statement (Exh.PI) of complainant (PW-5) and send the same through Tahiz Aziz 143/C (not produced) for registration of FIR (Exh.PQ). Investigating officer (PW-9) took four photographs (P-12/1-4) of deceased Sadam Mehdi and Mst. Haleema Bibi into possession vide recovery memo (Ex.DB). Investigating officer (PW-9) prepared the injury statement (Exh.PC) and inquest report (Exh.PD) of deceased Sadam Mehdi and injury statement (Exh.PR) and inquest report (Exh.PR/1) of deceased Mst. Haleema Bibi. After preparation, he sent the corpses for autopsy on

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private dala (not produced). He called the Punjab Forensic Science Agency (“PFSA”) team, who prepared sealed envelopes after examining the corpses of the deceased persons, which were recovered *vide* memo (Exh.PF). Blood stained earth underneath corpse of deceased Mst. Haleema Bibi was secured *vide* memo (Exh.PE). Blood stained earth underneath the corpse of deceased Sadam Mehdi was recovered *vide* recovery memo (Exh.PE/1). Shoes of deceased Mst. Haleema Bibi (P-11) were recovered *vide* memo (Exh.PG), and shoes of deceased Sadam Mehdi (P-10) were recovered *vide* memo (Exh.PS). Motorbike (P-5) was recovered *vide* memo (Exh.PL) and rough site plan of recovery was prepared (Exh.PU). Investigating officer (PW-9) then proceeded to the hospital, where last worn clothes of deceased Sadam Mehdi, i.e., Qameez (P-2), shalvar (P-3). Bunian (P-4), all stained with blood, were secured *vide* memo (Ex.PK). After the post-mortem of deceased Mst. Haleema Bibi, Naila Abbas 1860/LC (PW-3) produced before him four sealed envelopes, which he took into possession *vide* recovery memo (Ex.PH). On 06.05.2019, the case property handed over to *Moharrar* on the date of occurrence, was received back from *Moharrar* and deposited in PFSA on 07.05.2019. Investigating officer (PW-9) was transferred on 09.05.2019 and Maraqib Hussain SI/HIU (PW-10) was entrusted with the investigation. Second investigating officer (PW-10) arrested the appellants on 15.07.2019. Recoveries from appellant Niaz Hussain³ and Sultan⁴ were made on 19.07.2019. Thereafter, on 22.07.2019, the second investigating officer (PW-10) recovered weapons used by appellant Fida Hussain⁵ and juvenile co-accused Mehboob⁶ (tried separately). Site plan (Exh.PA and Exh.PA/1) was prepared by draftsman Saleem Akhtar (PW-1) on 23.08.2019. Upon completion of investigation, the investigating officer (PW-10) found the appellants guilty and submitted challan/police report under Section 173 of the Code before the Trial Court.

5. Formal charge was framed against the appellants, to which they pleaded not guilty and claimed trial. In order to prove the charge, prosecution produced as many as 13 witnesses. Ocular account was furnished by complainant

³ Blood stained hatchet (P-7) was recovered *vide* memo (Exh.PN) and rough site plan of recovery (Exh.PN/1) was prepared.

⁴ Blood stained hatchet (P-6) was recovered *vide* memo (Exh.PM) and rough site plan of recovery (Exh.PM/1) was prepared.

⁵ Blood stained hatchet (P-9) was recovered *vide* memo (Exh.PP) and rough site plan of recovery (Exh.PP/1) was prepared.

⁶ Blood stained hatchet (P-8) was recovered *vide* memo (Exh.PO) and rough site plan of recovery (Exh.PO/1) was prepared.

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Syed Inaam Mehdi (PW-5) and Syed Abdul Rauf (PW-6); Muhammad Iqbal deposed as PW-12; investigation was initially conducted by investigating officer Danish Ali SI (PW-9) and thereafter by second investigating officer Maraqib Hussain (PW-10); Autopsy of deceased Sadam Mehdi was conducted by Dr. Shoaib Anjum (PW-2), while post-mortem examination of deceased Mst. Haleema Bibi was conducted by Dr. Zainab Ayyub (PW-11); *Moharrar* Zafar Iqbal ASI deposed as PW-7 while *Moharrar* Khurshid Ahmed 222/HC deposed as PW-8; and, site plan was prepared by draftsman Saleem Akhtar (PW-1). Remaining of the prosecution witnesses (“**PWs**”) were more or less formal in nature. Prosecution evidence was closed after tendering, *id est*, forensic DNA and serology analysis report (Exh.PT) and closed the prosecution evidence. The learned Trial Court summoned and examined Mst. Abida Mai (CW-1), Ghulam Muhammad (CW-2) and Mst. Naseem Mai (CW-3) as the court witnesses. Thereafter, the appellants denied the charges levelled against them in their statements under Section 342 of the Code, but they did not opt to appear as their own witnesses in terms of Section 340(2) of the Code nor produce any defence evidence. On conclusion of trial, the learned Trial Court found the case against the appellants to have been proved; thus, convicted and sentenced them as detailed above.

6. Arguments heard; record perused.

7. It evinces from a wade through the Crime Report that the unfortunate incident whereby two persons lost their lives took place on the intervening night of 03/04.05.2019 at or about 01:30 a.m., subsequently the Crime Report got registered on 04.05.2019 at or about 03:20 a.m., after an inordinate delay of 1 hour and 50 minutes. No plausible justification or adequate explanation has been furnished by the complainant (PW-5) concerning the delay in the registration of the Crime Report,⁷ which in and of itself makes the case of the prosecution suspicious because complainant (PW-5) claimed during his deposition before the learned Trial Court that he met the police at Bechhra Road. In other words, if the complainant (PW-5) rushed to find a police officer and found one not long after, then the Crime Report ought to have been lodged instantly and not after a delay of 1 hour and 50 minutes. Along the same lines, the complainant (PW-5) did not mention the name of the police official he encountered. Muhammad Yousaf 1786/C

⁷ See “*Muhammad Jahangir v. The State*” (2024 SCMR 1741), wherein the honourable Supreme Court of Pakistan held that when no reasonable justification or adequate explanation *qua* delay in registration of FIR is provided, the lack of explanation or justification shatters the sanctity of the contents thereof.

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(PW-4) deposed that during the course of patrolling duty, investigating officer Danish Ali SI (PW-9) received information *qua* the occurrence, after which all the members of the patrolling party went to the venue of the crime, but the source of information was not disclosed. According to investigating officer Danish Ali SI (PW-9), he found out about the occurrence from the *Moharrar*. Said part of his cross-examination is reproduced:

‘Moharrir informed me about the occurrence. Moharrir had not disclosed any source of information about the occurrence. Moharrir did not disclose that at what time he received information about the occurrence. I did not record statement of Moharrir in this regard’.

Moharrar Zafar Iqbal ASI (PW-7) abstains from deposing this fact and merely stated that one, Tahir Aziz 143/C (not produced), brought the application for registration of Crime Report, however, it is not mentioned at what time the application was brought to the police station, either in the testimony or in the cross-examination of *Moharrar* Zafar Iqbal ASI (PW-7). Resultantly, the fact that the Crime Report number and when police found out about the occurrence in column No. 3 of the inquest reports is missing, leads to the conclusion that the mode and manner in which the investigating agency found out about the occurrence is shrouded in mystery and had the inquest report been prepared after registration of Crime Report and the investigating officer (PW-9) had received its copy, then he would have scribed the number and details of the Crime Report in the inquest report, however, the investigating officer (PW-9) was not in a position to mention the number of the Crime Report. Therefore, an inference can be drawn that the Crime Report was registered at a later time; however, through police efficiency, for a lack of better terminology, the ante-dated Crime Report was shown to have been registered with promptitude.⁸

8. One method of deciphering whether the Crime Report was *ante-dated* and verify if the relevant register was stopped by the investigating agency in order to procure the attendance of witnesses in an unseen occurrence is to peruse the inquest and autopsy report. In the inquest report of both the deceased, neither the FIR number finds any mention, nor has the time when police found out about the occurrence been scribed in column No. 3. Both of these facts were conceded by Dr. Shoaib Anjum (PW-2). According to the Crime Report and deposition of complainant (PW-5), the deceased *Sadam Mehdi* died at 01:30 a.m., while his

⁸ See “*Muhammad Iqbal and another v. The State and others*” (2023 PCr.LJ 402 Lahore).

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corpse was brought in by Muhammad Yousaf 1786/C (PW-4) at 08:00 a.m. Complete documentation and papers were received by Dr. Shoaib Anjum (PW-2) at 09:00 a.m., and the corpse of the deceased was identified by Mehtab Hussain (not produced) and Syed Fateh Hussain (not produced).⁹ Dr. Shoaib Anjum (PW-2) conducted the autopsy at 09:05 a.m., after a lapse of 7 hours and 20 minutes. He admitted in his cross-examination that the lapse was due to non-provision of the relevant police documents necessary for conducting the autopsy. Regardless, during the autopsy, he (PW-2) observed a total of ten (10) injuries on the corpse of the deceased. The total number of injuries stand conflicted with the number mentioned in the Crime Report and depositions of complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6), and there is no mention of any injury on the shoulder in either the depositions of complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6) nor the Crime Report, which is explicitly mentioned in the autopsy report, and despite claims of injury on the left side of head by the eyewitnesses of the Crime Report, no such injury was observed by Dr. Shoaib Anjum (PW-2) during autopsy. Relevant part of the testimony of complainant (PW-5) is reproduced hereunder:

‘Sultan accused caused hatchet blow on the left side of head of Sadam Mehdi’.

Cross-examination of Dr. Shoaib Anjum (PW-2) whereby the aforementioned part of testimony of complainant (PW-5) was contradicted is reproduced *infra*:

‘I did not mention any injury on the left side of temporal or parietal region of the head’.

In addition thereto, perusal of the autopsy report, duly supported by the deposition of Dr. Shoaib Anjum (PW-2), provides that *rigor mortis* was fully developed and post-mortem staining was present and difference between death and post-mortem is ‘06-12 hours’ and difference between injury and death is stated to be ‘within 15 minutes’.

9. Before depicting the autopsy report with both the medical and criminal jurisprudence on the subject, the particulars of the post-mortem examination of deceased Haleema Bibi by Dr. Zainab Ayyoub (PW-11) are scrutinised. It follows that she died at or about 02:00 a.m., and her corpse was brought in by Naila Abbas 1860 (PW-3) at 08:00 a.m. Police papers and documents were received by Dr. Zainab Ayyoub (PW-11) at 10:30 a.m., and the body was

⁹ Notably in the post-mortem report, body is identified by one Syed Khurshid Shah, whereas Dr. Shoaib Anjum (PW-2) in his deposition states Syed Fateh Hussain. Regardless, neither Syed Khursid Shah, nor Syed Fateh Hussain were produced by the prosecution as witnesses.

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identified by Ghulam Muhammad (CW-2)¹⁰ and Idrees.¹¹ The duration between injury and death, as well as death and autopsy, is the same as that of deceased Sadam Mehdi. Pertinently, according to complainant (PW-5) and the Crime Report, seven to eight injuries were inflicted on her person, whereas in the inquest report, only six injuries are mentioned; Syed Abdul Rauf Shah (PW-6) deposed that seven injuries were caused; Dr. Zainab Ayyoub (PW-11) observed a total of nine injuries. Again, there is discrepancy between the number of injuries in the ocular account and the inquest and autopsy report, the latter being duly supported by the testimony of Dr. Zainab Ayyoub (PW-11). Another similar feature between both the autopsies is that the duration between injury and death, as well as between death and autopsy, are the same, while in both the autopsies, *rigor mortis* is fully developed and post-mortem staining is present. To this end, Dr. Zainab Ayyoub (PW-11) stated in her cross-examination that:

‘It is correct that rigor mortis fully develop on the dead body after 24 hours’

Due to the discrepancies observed herein *supra*, guidance was sought from books on medical jurisprudence. In “The Principles of Medical Jurisprudence”, Alfred Swaine Taylor writes that:

‘Rigor Mortis usually commences within 2 to 4 hours of death. It reaches a peak in about 12 hours and starts to disappear after another 12 hours’.

Rai Bahadur Jaising P. Modi's “A Textbook of Medical Jurisprudence and Toxicology” provides that:

‘Duration-In temperate regions, rigor mortis usually lasts for two to three days. In northern India, the usual duration of rigor mortis is 24 to 48 hours in winter and 18 to 36 hours in summer. According to the investigations of Mackenzie, in Calcutta, the average duration is nineteen hours and twelve minutes, the shortest period being three hours, and the the longest forty hours.’ In Colombo, the average duration is 12 to 18 hours. When rigor mortis sets in early, it passes off quickly and vice versa. In general, rigor mortis sets in one to two hours after death, is well developed from head to foot in about twelve hours. Whether rigor is in the developing phase, established phase, or maintained phase is decided by associated findings like marbling, right lower abdominal discolouration, tense or taut state of the abdomen, disappearance of rigor on face and eye muscles. If on examination, the body is stiff, the head cannot be fixed towards the chest, then in all probability, the death might have occurred six to twelve hours or so more before the time of examination’.

¹⁰ Ghulam Muhammad (CW-2) is the father of the deceased Haleema Bibi.

¹¹ Note that in the testimony of Ghulam Muhammad (CW-2), the name is spelled as Idrees, whereas in the autopsy report, it is spelled as Adris.

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In “Asad Rehmat v. The State and others” (2019 SCMR 1156), the Honourable Supreme Court of Pakistan observed that:

‘Occurrence, statedly, took place at 2.00 p.m., autopsies started 4.30 p.m., concluded at 9.00 p.m. Muhammad Hayat was examined first; the medical officer noted rigor mortis. Same is the case with other corpses. In the month of March, development of rigor mortis within such short span of time is mind boggling; occurrence does not appear to have taken place at the point of time mentioned in the crime report’.

Likewise, in “Noor Ahmad v. The State and others” (2019 SCMR 1327), it was observed that:

‘Occurrence statedly took place at 10.00 a.m. whereas the autopsy was conducted at 5.00 p.m. development of complete rigor mortis on the body of a young lady in hot weather, belies point of time of assault given in the crime report’.

The only conclusion which can be reached when the medical jurisprudence, as well as criminal jurisprudence, is read in conjunction with the autopsy report of both the deceased is that the time of occurrence as narrated in the Crime Report stands contradicted by medical evidence, meaning thereby that the occurrence did not take place at the time mentioned in the Crime Report. Similarly, as observed above, conflict between ocular account and medical evidence is conspicuous.¹² Likewise, there is delay in conducting autopsy of deceased Sadam Mehdi by seven hours and twenty minutes, and delay in post-mortem examination of deceased Haleema Bibi is of nine hours and fifteen minutes. Generally, under the law laid down by the Honourable Supreme Court of Pakistan,¹³ delayed autopsy translates to absence of eyewitnesses from the venue of the crime when it took place and the witnesses are deemed to be chance witnesses at best. As a consequence thereof, the testimonies of the eyewitnesses were minutely examined to figure out as to whether they were present at the place of occurrence or otherwise, because it is trite that even a single doubt which reasonably shakes the credibility of the presence of a witness at the venue of the crime is sufficient to discard the testimony of said witness in its entirety.¹⁴ It follows that a chance witness, in legal parlance, is a witness who claims that he was present at the crime spot at the fateful time, albeit, his presence there was a sheer chance as in the ordinary course of business, place of residence

¹² See “Muhammad Shafi alias Kuddoo v. The State and others” (2019 SCMR 1045); and, “Amin Ali and another v. The State” (2011 SCMR 323).

¹³ See “Zafar v. The State and others” (2018 SCMR 326); “Muhammad Ilyas v. Muhammad Abid alias Billa and others” (2017 SCMR 54); and, “Shahbaz v. The State” (2016 SCMR 1763).

¹⁴ See “Mst. Rukhsana Begum and others v. Sajjad and others” (2017 SCMR 596); and, “Riaz Masih alias Mithoo v. The State” (1995 SCMR 1730).

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and normal course of events because he is not supposed to be present on the spot, but at a place where he resided, carried on business or ran day to day affairs. It is in this context that the testimony of a chance witness is ordinarily not accepted unless justifiable reasons were shown to establish his presence at the crime scene at the relevant time. In normal course, the presumption under the law is that such a witness was absent from the crime spot. True that in rare cases, the testimony of a chance witness may be relied upon, provided some convincing explanations appealing to a prudent mind for his presence on the crime spot are put forth, when the occurrence took place otherwise, his testimony would fall within the category of suspect evidence and cannot be accepted without a pinch of salt.¹⁵

10. In this regard, it has been observed that all the eyewitnesses were not residents of the place of occurrence. Complainant (PW-5) stated in his cross-examination that:

‘intervening distance between my residence and place of occurrence is about 15/20 KMs’.

According to eyewitness Syed Abdul Rauf Shah (PW-6), the distance between the place of occurrence and residence was, as under:

‘The place of occurrence is at the distance of 20/22 KMs from house of complainant’

Regarding this fact, the investigating officer (PW-9) deposed:

‘The intervening distance between place of occurrence and the residence of witnesses is about 10-15 KMs’

Along the same line, complainant (PW-5) in his deposition and narration in the Crime Report states that he became worried about the absence of the deceased Sadam Mehdi at about 12:45 a.m., whereas, eyewitness Syed Abdul Rauf Shah (PW-6) deposed that:

‘I got recorded to police in my statement u/s 161 Cr.P.C. that at about 12.30 night, Inam (sic) Mehdi came to me and told that at about 8.30 p.m, his brother Sadam Mehdi went to meet his friend to Basti Bechhra, who did not return and he was worried about him

¹⁵ See “*Mst. Sughra Begum v. Qaiser Pervez*” (2015 SCMR 1142); “*Mst. Rukhsana Begum and others v. Sajjad and others*” (2017 SCMR 596); “*State through Advocate-General, Khyber Pakhtunkhwa. Peshawar v. Hassan Jalil and others*” (2019 SCMR 1154); “*Muhammad Imran v. The State*” (2020 SCMR 857); “*Sufyan Nawaz and another v. The State and others*” (2020 SCMR 192); “*Muhammad Asif v. The State*” (2017 SCMR 486); “*Zahir Yousaf and another v. The State and another*” (2017 SCMR 2002); “*Muhammad Ali v. The State*” (2017 SCMR 1468); “*Mst. Anwar Begum v. Akhtar Hussain alias Kaka*” (2017 SCMR 1710); “*Arshad Khan v. The State*” (2017 SCMR 564); “*Muhammad Irshad v. Allah Ditta and others*” (2017 SCMR 142); “*Muhammad Ilyas v. Muhammad Abid alias Billa and others*” (2017 SCMR 54); “*Muhammad Rafique alias Feeqa v. The State*” (2019 SCMR 1068); and, “*Muhammad Ashraf alias Acchu v. The State*” (2019 SCMR 652); and, “*Muhammad Hassan and others v. The State and others*” (2024 SCMR 1427).

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and requested me to accompany him to search his brother’.

It does not appeal to reason, nor does the chronological chain of events as narrated by eyewitness Syed Abdul Rauf Shah (PW-6) appeal to a prudent mind because there appears to be no reason why the complainant (PW-5) would approach eyewitness Syed Abdul Rauf Shah (PW-6) fifteen minutes before he got worried about the absence of deceased Sadam Mehdi. This Court has also noticed that despite admitting that the deceased was carrying his mobile phone, no effort was made by the eyewitnesses in trying to contact the deceased on his mobile phone. It belies logic and rational thought, while simultaneously appears to be quite unnatural, that the aforementioned witnesses would opt to go on a wild goose chase in search of the deceased Sadam Mehdi instead of choosing to do the easier thing by way of contacting him on his mobile phone. In the same vein, complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6) claimed to have been searching for the deceased Sadam Mehdi in a vehicle when they stumbled at the scene of the crime and witnessed the occurrence. Neither details and description of the vehicle was mentioned by them to the investigating officer, nor was the same produced in evidence. This fact was admitted by the investigating officer (PW-9). Furthermore, it was disclosed by the complainant (PW-5) during his cross-examination that Mst. Naseem Bibi (CW-3) and Abida Bibi (CW-1), who appeared as court witnesses are the natural witnesses of the house outside which the occurrence took place. This admission of the complainant (PW-5) was affirmed by the investigating officer (PW-9). Before addressing the testimonies of court witnesses and the presence of Ghulam Muhammad (CW-2) in the “body identified by” column in the autopsy report, another aspect of this case needs deliberation, in order to justify their presence at the venue of occurrence at 01:30 a.m., prosecution brought to the stand Muhammad Iqbal (PW-12) who, although admitted that he was not an eyewitness of the occurrence because he admitted that he woke up around 04:00 a.m., after the occurrence transpired. Be that as it may, he tried to cover the lacunas in the prosecution's case to provide a reasonable justification for the presence of the eyewitnesses. The testimony of Muhammad Iqbal (PW-12) failed to achieve its objective as he was duly confronted by his statement under Section 161 of the Code. Relevant portion is reproduced:

‘I got recorded in my statement ExDB that Rauf Shah, Inam Mehmdi along with Mehtab Hussain Shah were already present there in the presence of police. Confronted with Ex.DB, wherein it is not so recorded. It is incorrect to suggest that I get record in my statement Ex.DB that Inam Mehdi, Rauf Shah and Mehtab Shah came at the place of

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occurrence. (Confronted with Ex.DB, where the presence of above said PWs namely Inam Mehdi, Rauf Shah and Mehtab Hussain Shah is not mentioned’.

11. This Court has also taken cognizance of the fact that the complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6) admitted that they did not make any effort, either to apprehend the appellants, nor to rescue the deceased Saddam Mehdi, or deceased Haleema Bibi for that matter. Further, complainant (PW-5) admitted that he did not make any call to rescue 1122 and as already noted, how the police became aware about the occurrence is shrouded in mystery. Astonishingly, the accused persons/appellants spared all the said spectator witnesses and no injury on the person of the spectator witnesses was inflicted so that at a later stage, said witnesses could have the Crime Report registered against the appellants and provide evidence at trial so that the appellants are convicted.¹⁶ Article 129 of the Qanun-e-Shahadat 1984 (“QSO”) allows the Courts to presume the existence of any fact, which it thinks is likely to have happened, regarding the common course of natural events and human conduct in relation to the facts of the particular case.¹⁷ This Court presumes the existence of this fact that the occurrence remained unwitnessed by virtue of Article 129 of QSO because the conduct of the witnesses as deposed by them is opposed to the common course of natural events and human conduct, so, it leads this Court to the conclusion that the presence of the witnesses at the time of the crime is doubtful, consequently, it is held that the occurrence remained unseen,¹⁸ due to lack of justification *qua* their presence at the scene of the crime and suspect behaviour, which runs contrary to natural human conduct. On top of that, due to the discrepancies, contradictions and inconsistencies between the testimonies of ocular account, the same is not worth relying upon. The Honourable Supreme Court of Pakistan in “Muhammad Ijaz alias Billa and another v. The State and others” (2024 SCMR 1507), while acquitting the appellants in that case, observed that:

‘Eye-witness testimonies, often the bedrock of criminal cases, are inconsistent and riddled with contradictions in this case. ... the ocular account in this case is full of contradictions and does not inspire confidence. Reference in this regard may made to the case of Nasir Javaid and another v. The State (2016 SCMR 1144); Muhammad Nawaz and others v. The State and others (2016 SCMR 267) and Hayatullah v. The

¹⁶ See “Riasat Ali v. The State” (2024 SCMR 1224).

¹⁷ See “Pathan v. The State” (2015 SCMR 315).

¹⁸ See “Zafar Ali Abbasi v. The State” (2024 SCMR 1773); “Pathan v. The State” (2015 SCMR 315); “Masood Ahmed and Muhammad Ashraf v. The State” (1994 SCMR 6).

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State (2018 SCMR 2092)’.

12. The observations made hereinabove find support from the testimonies of the court witnesses. In order to comprehend and appreciate the intrinsic worth of the depositions of the court witnesses, it would be advantageous to examine the provision of Section 265-F and 540 of the Code, which are reproduced for ready-reference *infra*:

‘265-F. Evidence for prosecution. (1) *If the accused does not plead guilty or the Court in its discretion does not convict him on his plea, the Court shall proceed to hear the complainant (if any) and take all such evidence as may be produced in support of the prosecution:*

Provided that the Court shall not be bound to hear any person as complainant in any case in which the complaint has been made by a Court.

(2) *The Court shall ascertain from the Public Prosecutor or, as the case may be, from the complainant, the names of any persons likely to be acquainted with the facts of the case and to be able to give evidence for the prosecution, and shall summon such persons to give evidence before it.*

(3) *The Court may refuse to summon any such witness, if it is of opinion that such witness is being called for the purpose of vexation or delay or defeating the ends of justice. Such ground shall be recorded by the Court in writing.*

(4) *When the examining of the witnesses for the prosecution and the examination (if any) of the accused are concluded, the accused shall be asked whether he means to adduce evidence.*

(5) *If the accused puts in any written statement, the Court shall file it with the record.*

(6) *If the accused, or any one of several accused, says that he means to adduce evidence, the Court shall call on the accused to enter on his defence and produce his evidence.*

(7) *If the accused, or any of several accused, after entering on his defence, applies to the Court to issue any process for compelling the attendance of any witness for examination or the production of any document or other thing, the Court shall issue such process unless it considers that the application is made for the purpose of vexation or delay or defeating the ends of Justice such ground shall be recorded by the Court in writing.*

540. Power to summon material witness or examine person present. *Any Court may, at any stage of any inquiry, trial or other proceeding under this Code, summon any person as a witness, or examine any person in attendance, though not summoned as a witness, or recall and re-examine any person already examined; and the Court shall summon and examine or recall and re-examine any such person if his evidence appears to it essential to the just decision of the case’.*

Perusal of the reproduced provisions provide that prosecution evidence is brought

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on record in terms of Subsection (2) of Section 265-F of the Code which provides that the trial court is empowered, after ascertaining from the public prosecutor or complainant, to summon any person as a witness who is acquainted with the facts of the case and is able to give evidence. However, when it appears to the trial court that the witness is being called for the purpose of vexation, delay or defeating the ends of justice, it has the power to refrain from summoning such a witness.¹⁹ After completion of prosecution evidence, the trial court is under a bounden duty to allow the accused person to adduce his evidence,²⁰ generally termed as defence evidence, and after entering in his defence, if the accused applies to the trial court to summon any person as a witness or for the production of a document, the trial court shall summon such witness or document.²¹ The exception for refusal to exercise this power is the same for the accused as it is for the prosecution under subsection (3) of this provision, i.e., vexation or delay or defeating the ends of justice. The only difference between the powers granted to the trial court under Section 265-F of the Code and Section 94 of the Code appears to be that the first can only be exercised during the course of trial after plea of the accused under Section 265-E of the Code and witnesses deemed essential can be summoned, whereas the latter can be exercised at any stage of “any proceedings”²² where the court conducting the proceeding, inquiry or trial, as the case may be, considers the production of a document or other thing, i.e., an object,²³ necessary. While exercising powers under Section 94 of the Code, only the person in whose possession or power such a document or other thing is believed to be and summon said person to produce the same before the court. Similarly, the self-explanatory provision of Section 540 of the Code provides that it has two limbs. The first enables the trial court, at any stage of inquiry, trial or other proceedings under the Code, to:

¹⁹ See subsection (3) of Section 265-F of the Code.

²⁰ See subsection (6) of Section 265-F of the Code.

²¹ See subsection (7) of Section 265-F of the Code.

²² In “*Mian Zaheer Abbas Rabbani v. The State etc*” (PLD 2025 Lahore 98 (FB)), the full bench of this Court observed that under the Code, there are many types of proceedings, ‘for example, security proceedings or maintenance proceedings or bail applications, which can by no stretch of imagination be construed as cases wherein offences are tried; nevertheless they are essential part of the cases which the Criminal Courts try’. It is acknowledged that in said case, the term “Case” as specified in Section 528 of the Code was being deliberated upon, however, this Court sees no reason as to why the term “proceedings” used in the provisions mentioned hereinabove would not comprise of such proceedings as specified by the full bench. Reason being that any proceeding under the Code which does not amount to a “Case” will nonetheless remain “proceeding”, irrespective of whether the same are being carried out during the course of inquiry, trial or proceeding.

²³ It was clarified by this Court in “*Shakeel Akhtar v. The State and others*” (2023 LHC 7704), that the word “thing” used in Section 94 of the Code is to be broadly construed to encompass anything relevant to the offence and the production of which would promote the cause of justice. “*Shakeel Akhtar v. The State and others*” (2023 LHC 7704) was later on followed in “*Nasira Ashfaq v. Director General Safe Cities Authority, Punjab and 6 others*” (2025 PCr.LJ 233 Lahore).

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- a. Summon anyone as a witness;
- b. Examine any person in attendance, though not summoned as a witness; or,
- c. Recall and re-examine any person already examined.

The power under this limb appears to be discretionary in nature. As opposed to the first limb, the second part of this provision is mandatory in nature and requires the trial court to exercise any of the powers of the first limb, with a caveat that the evidence of such a person appears to be essential for a fair and just decision. The power bestowed upon the trial court under Section 540 of the Code can be exercised at any stage of any inquiry, trial or other proceeding,²⁴ even before production of defence evidence. It appears that the legislative intent behind enacting the aforementioned provisions was to ensure fair trial and equal opportunity²⁵ is given to both the prosecution and accused,²⁶ however, embargoes are placed to prevent filling of lacuna in their case for either side, as elaborated hereinabove. Regarding the plea of filling in lacuna, where it reasonably appears that such evidence/material is necessary for a fair and just decision, then even in the presence of delay or plea of filling in lacuna, the trial court is under a mandatory duty to summon such evidence/material.²⁷ It needs no reiterating that the criminal justice system is inquisitorial in nature, as opposed to adversarial,²⁸ and the purpose is not merely to sentence the accused but to ensure that only the guilty are punished while the innocent roped in frivolous cases are acquitted. No wonder that in addition to prosecution evidence and defence evidence, the legislature granted the court, the power to summon persons as court witnesses and for doing so, even no application needs to be filed by either side for invoking jurisdiction under these provisions because ‘*calling of additional evidence is not always conditioned on the defence or prosecution making application for this purpose but it is the duty of the Court to do complete justice between*

²⁴ The phrase “at any stage” also finds mention in the provisions of Section 249-A and 265-K of the Code and has been interpreted as “*Niaz Ahmed and another v. Aijaz Ahmed and others*” (PLD 2024 Supreme Court 1152), wherein, while relying on “*The State v. Raja Abdul Rehman*” (2005 SCMR 1544), it was held that ‘*The bare perusal of the above-provision reveals that law permits the exercise of powers "at any stage of the case" without specifying a particular stage. The words "at any stage" used in both the sections include the stages before or after framing of the charge or after recording of some evidence.*’⁶

²⁵ All three provisions existed in the Code before the insertion of Article 10-A in the Constitution of the Islamic Republic of Pakistan 1973 (“**Constitution**”) vide the Constitution (Eighteenth Amendment) Act 2010 (“**Eighteenth Amendment Act**”), which Article pertains to fair trial and due process.

²⁶ See “*Sajid Mehmood v. The State*” (2022 SCMR 1882).

²⁷ See “*Muhammad Azam v. Muhammad Iqbal and others*” (PLD 1984 Supreme Court 95); and, “*Zaheer Ahmed v. Judge, Special Court*” (PLD 2023 Lahore 528).

²⁸ See “*Khuda Bux v. The State*” (2024 PCr.LJ 2014 Sindh); “*Zaheer Ahmed v. Judge, Special Court*” (PLD 2023 Lahore 528); “*Ch. Muhammad Anwar v. Judge Accountability Court No. 4, Lahore*” (2021 MLD 648 Lahore).

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the parties and the carelessness or ignorance of one party or the other or the delay that may result in the conclusion of the case should not be a hindrance in achieving that object'.²⁹ In "Chairman, NAB v. Muhammad Usman and others" (PLD 2018 Supreme Court 28), the Honourable Supreme Court held that the role of the court while exercising powers under Section 540 of the Code was inquisitorial where it endeavoured to discover the truth which was suppressed by either party.³⁰ Since it is the court who summons the witness(es) in order to discover the truth, not the prosecution or defence, such witness(es) appear as court witness(es).

13. The learned Trial Court, after completion of prosecution evidence, invoked its powers under Section 540 of the Code and summoned Abida Mai (CW-1); Ghulam Muhammad (CW-2); and, Naseem Bibi (CW-3) as court witnesses in order to discover the truth which was suppressed by the prosecution. Ghulam Muhammad (CW-2) is the father of the deceased Haleema Bibi and his name appeared in the autopsy report prepared by Dr. Zainab Ayyoub (PW-11) in the "body identified by" column. Naseem Bibi (CW-3) is the mother while Abida Bibi (CW-1) is the sister of said deceased and the name of both finds mentioned in the Crime Report as eyewitnesses to the occurrence, hence, they were necessary to do complete justice. It has been observed that unlike the complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6), the aforementioned three court witnesses were residents of the house outside which the occurrence took place. As reiterated above, this fact was acceded to by complainant (PW-5) in his cross-examination and affirmed by investigating officer (PW-9). Pertinently, Abida Mai (CW-1) moved applications before the SHO, DPO, RPO and thereafter filed a petition under Section 22-A(6) of the Code before the learned Ex-Officio Justice of Peace and subsequently invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution by instituting writ petition bearing W.P. No. 16849 of 2019. Since no Crime Report based on their version of events got registered against the accused persons nominated therein,³¹ Abida Mai (CW-1) filed a private complaint under Section 200 of the Code bearing title "Abida Mai v. Iqbal, etc.". It is the version of the court witnesses, which remained consistent throughout, that deceased Mst. Haleema Bibi went outside the house at 11:30 a.m. on 03.05.2019 when on the hue and cry, Abida Mai (CW-1) along with her mother Naseem Bibi

²⁹ See "The State v. Muhammad Yaqoob and others" (2001 SCMR 308).

³⁰ Also See "Nawabzada Shah Zain Bugti and others v. The State" (PLD 2013 Supreme Court 160); "Ghulam Rasool Shah and another v. The State" (2011 SCMR 735).

³¹ Namely, Iqbal, Jalal, Sagheer and Ijaz.

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(CW-3) went outside to witness accused persons Iqbal, Jalal, Sagheer and Ijaz launched a murderous assault wherein deceased Saddam Mehdi and deceased Mst. Haleema Bibi lost their lives. Abida Bibi (CW-1) claimed that she went to her father Ghulam Muhammad (CW-2) who reached the place of occurrence at about 03:00 a.m. and informed the police; the police reached the venue of crime at 06:30 a.m. and conveyed to the legal heirs of deceased Saddam Mehdi about his murder, whereafter the complaint (PW-5), eyewitness Syed Abdul Rauf Shah (PW-6) and Mehtab Hussain (not produced) arrived at 07:30 a.m. The time of occurrence as claimed by Abida Bibi (CW-1) is 11:30 p.m. on 03.05.2019, which was affirmed by Naseem Bibi (CW-3). If the deceased Mst. Haleema Bibi died on 03.05.2019 at 11:30 p.m., while her autopsy was conducted on the following day at 11:15 a.m., then the existence of *rigor mortis* on her corpse makes sense, in view of the jurisprudence examined hereinabove.

14. It has also been observed that all the court witnesses remained consistent insofar as the time when the police, as well as complainant (PW-5), eyewitness Syed Abdul Rauf Shah (PW-6) and Mehtab Hussain (not produced), arrived at the scene of the crime and their testimonies could not be shattered by the prosecution despite lengthy cross-examination. Time of arrival of police at 06:30 a.m. is substantiated by the testimony of Muhammad Yousaf 1786/C (PW-4), who deposed that pictures of the corpses were captured by the investigating officer at or about 06:00/06:30 a.m. Even otherwise, there is no mention of any dragging in their dispositions which finds support from the fact that in the injury statement, no sign of resistance or dragging is mentioned, the site plan provides that there is no trail of blood, and the investigating officer (PW-9) during his cross-examination stated that it is correct that no sign of dragging or resistance was discerned by him. Reverting to the autopsy, autopsy reports of both the deceased persons, the difference between injury and death is within 15 minutes and in spite of the availability vehicle with the complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6), they did not make any effort to transport the corpses of the then injured, since deceased persons, to any hospital in an attempt to save their lives, which attracts the presumption of Article 129 of QSO due to being unnatural conduct. It does not appeal to a prudent mind that the brother of the deceased Saddam Mehdi would not make any attempt to save the life of his brother and rush him to the hospital, rather undertake a futile errand *per se* to find police officials. In “Abid Hussain and another v. The State and others” (2024 SCMR 1608), the Honourable Supreme Court of Pakistan observed

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the following regarding identical conduct by the complainant in that case, as under:

‘5. Without prejudice to the above, the conduct of the complainant and the alleged eye-witnesses is unnatural. It is not acceptable to a prudent mind that when the son of the complainant received bullet injuries, he and PW7 being his nephew did not take the injured to a hospital, in order to save his life. Instead, the complainant opted to go to the police station for registration of an FIR, leaving behind PWs Shahbaz and Imran. The record reflects that the dead body remained lying at the place of the occurrence for about two and half hours. According to the doctor (PW4), the dead body was brought to the hospital by the police officials and there is no evidence to prove that the complainant and PW7 went along the dead body to the hospital, that is why, the dead body was identified by others, who were not produced as witnesses. The manner in which the complainant and PW7 narrated the story does not appear to be trustworthy. In the facts and circumstances of the case, their presence at the place of the occurrence at the relevant time is not established, therefore, we have no doubt in our mind that the prosecution case against the appellant is doubtful’.

When these facts are collectively appraised, they lead to the irresistible conclusion that complainant (PW-5) and eyewitness Syed Abdul Rauf Shah (PW-6) arrived at the scene of the crime at 07:30 a.m. after being informed by the local police and had not witnessed the occurrence. Under the law, when best evidence available has been withheld by a party, an adverse presumption as enunciated under illustration (g) of Article 129 of QSO would arise against such a party that had the witness appeared in the witness box, he would not have supported the stance of that party.³² The prosecution, *inter alia*, withheld the testimonies of Tahir Aziz 143/C (not produced), was the best person who could have solved the conundrum with regards to the time at which the investigating agency found out about the occurrence being the police official who took the *istighasa* from the place of occurrence to the police station for registration of formal Crime Report, and Mehtab Hussain (not produced), who remained associated with the investigation throughout and is an eyewitness according to the Crime Report. In “Muhammad Ijaz alias Billa and another v. The State and others” (2024 SCMR 1507), where the prosecution withheld independent eyewitness, the appellants of that case were acquitted due to possibility of false implication. In view of the above, this Court is of the opinion that the prosecution withheld the best evidence, which undermines the credibility of its account and possibility of false implication cannot be ruled out.

15. Another aspect of this case which required adducing evidence is the

³² See “Muhammad Anwar and others v. The State and others” (2025 SCMR 45); “Riasat Ali and another v. The State and another” (2024 SCMR 1224); and, “Riaz Ahmed v. The State” (2010 SCMR 846).

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identification of the appellant. The incident took place at night in a rural area where no light source existed. To fill in this lacuna, the complainant (PW-5) introduced a torch and used the illumination of said torch to witness the occurrence. Said torch was never produced by complainant (PW-5) nor taken into possession by the investigating officer (PW-9). Resultantly, the identity of the assailants is veiled in uncertainty. In similar circumstances, the Honourable Supreme Court of Pakistan in “Nazeer Ahmad v. Gehne Khan and others” (2011 SCMR 1473) upheld the acquittal of the appellants due to the source of light, i.e., torch, not being taken into possession during a night occurrence.³³

16. To the extent of recovery of murder weapons from the appellants, although they were disbelieved by the learned Trial Court, however, due to criminal revision for enhancement being filed, the evidence *qua* recoveries is appraised. It has been observed that the murder weapons used by appellant Niaz Hussain and Sultan *alias* Panun got recovered by the investigating agency on 19.07.2019, after almost 77 days whereas murder weapon used by appellant Fida Hussain was recovered on 22.07.2019, after 80 days from date of occurrence. All the murder weapons were recovered from the houses of the appellants, however, no independent witnesses from the locality were associated with the search and seizure as mandated by Section 103 of the Code. In “Muhammad Azam v. The State” (PLD 1996 Supreme Court 67 (5-MB)), the Full Bench of the Honourable Supreme Court of Pakistan held that Section 103 of the Code applies with full force and is mandatory when search is to be made of the place which is in an inhabited locality. In other words, it can be said that Section 103 is relatable to the place and not to the person. If the place is known where search is to be made, and that place is situated in a locality which is inhabited by the people, then it is necessary to join two or more respectable persons from that locality to witness the search. Another astonishing factor which this Court has observed is that all the murder weapons recovered from the appellants were blood stained. It does not resonate with a judicious mind that the appellants would keep the murder weapons stained with blood as souvenirs for such a long duration despite having ample time to dispose them off or destroy them or at the very least, wash away the blood stains from them.³⁴ Furthermore, Moharrar Zafar Iqbal (PW-7) in his cross-examination stated:

³³ Also see “Muhammad Anwar v. The State” (2002 SCMR 1289).

³⁴ See “Sardar Bibi and another v. Munir Ahmed and others” (2017 SCMR 344); “Bashir Ahmed alias Mannu v. The State” (1996 SCMR 308); and, “Muhammad Din v The State” (PLD 1959 Supreme Court (Pak.) 491).

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‘I remained posted at police station Saddar Taunsa Sharif about till 15.05.2019. I Did not receive any parcel prepared by I.O. through my posting at P.S. Saddar Taunsa Sharif. It is correct that throughout my posting I.O. did not handed over me any parcel etc. of this case’.

Moharrar Khurshid Ahmed 222/HC (PW-8), who received parcels of recovered murder weapons of the appellants from second investigating officer admitted during cross-examination that:

‘I did not got recorded my statement to I.O. regarding handing over parcels on 19.07.2019 till 15.08.2019. I did not got recorded my statement to I.O. regarding handing over parcels on 22.07.2019 till 15.08.2019’.

In view of the above, all the PFSA reports are inconsequential. Consequent of the deliberation made above, the recoveries of the murder weapons from the respective appellants are disbelieved.

17. Motive behind the occurrence was ascribed to suspected illicit relationship between deceased Sadam Mehdi and Mst. Haleema Bibi. The prosecution witness did not state a single word or produced any evidence to substantiate motive, thus, motive of the occurrence against the present appellants is not proved.³⁵

18. From the above-stated facts and circumstances, it is abundantly clear that in this particular case, the prosecution version is burdened/ loaded with major discrepancies, which create serious doubts about its authenticity. The prosecution has failed to bring on record any convincing material to establish that it was the appellants who had committed the occurrence. It is an established principle of law that to extend the benefit of the doubt it is not necessary that there should be so many circumstances. If one circumstance is sufficient to discharge and bring suspicion in the mind of the Court that the prosecution has faded up the evidence to procure conviction then the Court can come forward for the rescue of the accused persons.³⁶

³⁵ See *“Ifthikhar Hussain alias Kharoo v. The State”* (2024 SCMR 1449); and, *“Muhammad Jahangir and another v. The State and others”* (2024 SCMR 1741).

³⁶ See *“Hussain v. The State”* (2022 SCMR 1567); *“Sajjad Hussain v. The State”* (2022 SCMR 1540); *“Abdul Ghafoor v. The State”* (2022 SCMR 1527); *“Kashif Ali v. The State”* (2022 SCMR 1515); *“Muhammad Ashraf v. The State”* (2022 SCMR 1328); *“Muhammad Imran v. The State”* (2020 SCMR 857); *“Mst. Asia Bibi v. The State and others”* (PLD 2019 Supreme Court 64); *“Gul Dast Khan v. The State”* (2009 SCMR 431); *“Muhammad Ashraf alias Acchu v. The State”* (2019 SCMR 652); *“Abdul Jabbar and another v. The State”* (2019 SCMR 129); *“Muhammad Mansha v. The State”* (2018 SCMR 772); *“Tariq Pervaiz v. The State”* (1995 SCMR 1345); and, *“Daniel Boyd (Muslim Name Saifullah) and another v. The State”* (1992 SCMR 196).

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19. Accordingly, **criminal appeal No. 331 of 2023** of appellant Niaz Hussain, **criminal appeal No. 329 of 2023** of appellant Fida Hussain, and **criminal appeal No. 328 of 2023** of appellant Sultan *alias* Panun are **accepted** in toto and the conviction and sentence recorded by the learned Trial Court *vide* judgment dated 26.01.2023 is **set aside**, as a consequence whereof, the appellants, namely, Niaz Hussain, Fida Hussain, and Sultan *alias* Panun are **acquitted** of the charge against them under Sections 302, 364, 449 and 34 of the PPC in Crime Report bearing FIR No. 133/2019 dated 04.05.2019 registered with Police Station Saddar Taunsa Sharif, District Dera Ghazi Khan. For the same reasons, **Criminal Revision No. 84 of 2023** is **dismissed**. **The appellants are directed to be released forthwith if not required in any other case.**

(MUHAMMAD JAWAD ZAFAR)
 JUDGE

Gulfam/*

Approved for Reporting

JUDGE